ADOPTED
BOARD OF SUPERVISORS
COUNTY OF LOS ANGELES

53 October 6, 2026

Edward Yen
EDWARD YEN
EXECUTIVE OFFICER

CITY CLERK'S OFFICE
275 East Olive Avenue • Burbank, California • 91502
(818) 238-5851 • fax (818)238-5853 • cityclerks@burbankca.gov

August 6, 2026

Mr. Dean C. Logan, Registrar-Recorder/County Clerk
Election Coordination Unit
12400 Imperial Highway, 2nd Floor, Room 2013A
Norwalk, California 90650

Transmitted via E-Mail

Re: Consolidation of the City of Burbank General Municipal Election with the November 3, 2026 General Election

Dear Mr. Logan:

The Burbank City Council requests that the Los Angeles County Board of Supervisors approve the City of Burbank's consolidation with the November 3, 2026, General Election.

In addition, the Council requests the inclusion of three (3) ballot measures to be placed on the November 3, 2026, General Election ballot. Enclosed are certified copies of City of Burbank Resolution No. 26-29,725, calling for the placement of a charter amendment; City of Burbank Resolution No. 26-29,726, calling for the placement of a measure to change the City's electoral system; and City of Burbank Resolution No. 26-29,727, requesting election consolidation with the County.

Documentation for a Transient Occupancy Tax Measure was previously transmitted via email on July 7, 2026.

Please do not hesitate to contact me at kclark@burbankca.gov or (818) 238-5851 should you have any questions or require any additional information.

Thank you for your kind assistance.

Sincerely,

Kimberley Clark
Elections Official/Burbank City Clerk

Enclosures: Resolution Nos. 26-29,725; 26-29,726; and 26-29,727

cc: Alex Olvera, Division Manager, Election Information and Preparation

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF BURBANK)

I, Kimberley Clark, Elections Official/City Clerk of the City of Burbank, County of Los Angeles, State of California, hereby certify that I have compared the foregoing copy with the original Resolution No. 26-29,725 A RESOLUTION OF THE COUNCIL OF THE CITY OF BURBANK CALLING FOR THE PLACEMENT OF A CHARTER AMENDMENT MEASURE ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT FOR THE SUBMISSION TO QUALIFIED VOTERS PROPOSED CHARTER AMENDMENTS THAT WOULD REMOVE THE REQUIREMENT FOR AT-LARGE ELECTIONS OF CITY COUNCIL MEMBERS AND PERMIT THE CITY'S ELECTORAL SYSTEM TO BE SPECIFIED BY ORDINANCE; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SETTING RULES AND DEADLINES FOR ARGUMENTS AND REBUTTALS FOR AND AGAINST THE MEASURE, now on file in the Office of the City Clerk of the City of Burbank; that the same contains a full, true and correct transcript therefrom and of the whole thereof.

Witness my hand and the seal of said City of Burbank, this 6th day of August, 2026.

Kimberley Clark

KIMBERLEY CLARK
ELECTIONS OFFICIAL/BURBANK CITY CLERK

RESOLUTION NO. 26-29,725

A RESOLUTION OF THE COUNCIL OF THE CITY OF BURBANK CALLING FOR THE PLACEMENT OF A CHARTER AMENDMENT MEASURE ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT FOR THE SUBMISSION TO QUALIFIED VOTERS PROPOSED CHARTER AMENDMENTS THAT WOULD REMOVE THE REQUIREMENT FOR AT-LARGE ELECTIONS OF CITY COUNCIL MEMBERS AND PERMIT THE CITY'S ELECTORAL SYSTEM TO BE SPECIFIED BY ORDINANCE; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SETTING RULES AND DEADLINES FOR ARGUMENTS AND REBUTTALS FOR AND AGAINST THE MEASURE

THE COUNCIL OF THE CITY OF BURBANK FINDS:

A. On August 23, 2022, the City received a notice of a potential violation of the California Voting Rights Act (CVRA) from a potential plaintiff (Plaintiff) on behalf of a Latino voter in the City of Burbank. (Elec. Code §§14027-14032.)

B. On January 24, 2023, Council adopted a Resolution of Intent to Initiate a Transition to District Elections in accordance with Elections Code § 10010 and authorized staff to retain National Demographics Corporation (NDC) to guide the process.

C. Council held two pre-map public hearings on March 14, 2023, and April 11, 2023, with three community forums on March 30, April 6, and April 8.

D. Prior to the initial June 2 deadline for submission of draft districting maps, 26 draft maps were submitted with 14 submissions in the "Draw Your Neighborhood" tool.

E. On June 14, 2023, Council held its first public hearing to consider draft maps submitted by the June 2 deadline.

F. At Council's direction, the City hosted five additional community forums on June 15, 22 (one virtual and one live), 24 and 29 to allow constituents multiple opportunities to discuss and debate five "focus" maps selected by Council.

G. The City received 13 additional maps and one more "Draw Your Neighborhood" submission by the second July 7 deadline.

H. Council held a fourth public hearing July 18 at which it considered the additional submissions. At that hearing, Council directed NDC to create variations of draft Map 130.

I. Map 130 and the four variations created by NDC each included a proposed sequencing in which the districts depicted in the map would be up for election either in the presidential or the gubernatorial election year.

J. Map 130 and its variations with corresponding sequencing proposals were posted on Burbank's redistricting website on July 28, 2023.

K. Council considered Map 130 and its variants at a public hearing August 23 but did not assign final sequencing of elections in the districts of Map 130 or any of its variations.

L. Rather, Council directed staff to return for future discussion following the outcome of the California Supreme Court decision in the *Pico Neighborhood Ass'n v. City of Santa Monica* case.

M. On August 24, 2023, the California Supreme Court issued its opinion in *Pico Neighborhood Ass'n v. City of Santa Monica* (2023) 15 Cal.5th 292.

N. Considering the Supreme Court's expansive discussion of alternative electoral systems as remedial options in a CVRA case, on October 3, 2023, the Council unanimously declined to adopt a districting ordinance and directed staff to evaluate the availability and impact of cumulative voting in the City's existing at-large election system.

O. On October 3, 2023, by unanimous motion, Council directed staff to:

a. Contact the Los Angeles County Clerk regarding the feasibility of cumulative voting for residents and return with a first-step report on cumulative voting that addresses any expected impact on voter representation in Burbank.
b. Direct the Charter Review Committee to consider the size and composition of the City Council, consider various iterations of districts, the possibility of a separately elected Mayor, and a re-districting process.
c. Invite the Plaintiff to participate in future discussion to ensure any potential outcome address the concerns posed by the CVRA violation notice.

P. On October 19, 2023, the Plaintiff filed a lawsuit against the City alleging two causes of action, for violation of the CVRA and the Equal Protection Clause of the California Constitution (the second was subsequently dismissed with prejudice).

Q. On February 23, 2026, the City participated in court-ordered pretrial mediation which resulted in a settlement of the CVRA lawsuit.

R. The settlement agreement included a provision for placing a Charter amendment measure on the ballot permitting a change in the City's electoral system from its current at-large method to a district-based method in which Council members are

required to be residents of their respective electoral districts and are nominated and elected by the residents of their respective electoral districts.

S. The settlement agreement required the operative provisions of the Charter Amendment to be substantially in the form attached hereto as Exhibit A.

T. The proposed Measure is not a project under the California Environmental Quality Act (CEQA) pursuant to 14 CCR Section 15061(b)(3) because it can be seen with certainty that there is no possibility that the activity of placing the proposed Charter Amendment on the ballot for voter approval and implementation of the Charter Amendment, if adopted, may have a significant effect on the environment. (See also CEQA Guidelines, Section 15378(b)(5).).

THE COUNCIL OF THE CITY OF BURBANK DOES ORDAIN AS FOLLOWS:

1. Recitals. The City Council hereby finds and determines that the forgoing recitals are true and correct and are incorporated herein by this reference and are made an operative part hereof.

2. Call for Placement of Measure on the November 3, 2026 Election Ballot. Pursuant to Elections Code Section 9255(b)(1) and Government Code Section 34458, the City Council approves the submittal to the qualified voters of the City of Burbank at the General Municipal Election to be held in the City of Burbank, California on Tuesday, the 3rd day of November, 2026, a measure that, if approved, would amend the Charter of the City of Burbank to remove the requirement for at-large elections and permit the City's electoral system to be specified by ordinance (proposed Measure). This proposed Measure shall be designated by letter by the Los Angeles County Registrar of Voters.

3. Ballot Language. The ballot language for the proposed Measure shall be as follows:

CHARTER AMENDMENT MEASURE ___: Shall the Burbank City Charter be amended to remove the requirement for at-large elections of City Council members and permit the City's electoral system to be specified by ordinance adopted by the City Council or by the voters by initiative? **Supporters:** **Opponents:**	Yes _____	No _____

4. Text of Measure. The proposed Measure submitted to the voters is attached in Exhibit A to this Resolution, which is incorporated herein by reference. The City Council hereby approves the proposed ordinance, in the form thereof, and its submission to the voters of the City at the November 3, 2026 election. The full text of the proposed Measure shall be printed in the ballot materials and be available for public inspection in the City Clerk's office and on the City's website burbankca.gov.

5. **Publication of Measure**. The City Clerk is hereby directed to cause notice of the proposed Measure to be published once in a daily newspaper of general circulation in the City of Burbank, in accordance with Section 12111 of the California Elections Code and Burbank Municipal Code Section 2-3-119.

6. **Election and Canvass of Returns**. The returns of said election shall be canvassed and declared as provided by law, and if a majority of the votes cast at such election are in favor of such Measure, the Measure shall be approved.

7. **Authority for City Council or Members Thereof to File Argument**. Pursuant to Elections Code Section 9282(b), the City Council or a member or members of the City Council authorized by the City Council may file a written argument in favor of the proposed Measure.

8. **Submission of Ballot Arguments**. Pursuant to California Elections Code Sections 9281 et seq., the deadline for submission of arguments to the City Clerk in favor of, and arguments against, the proposed Measure shall be August 14, 2026. Arguments in favor of or against the proposed Measure shall not exceed three hundred (300) words in length. Each argument shall be signed, filed with the City Clerk, and include the printed name(s) and signature(s) of the author(s) submitting the argument. If more than one argument for or against is received, the priorities established by Elections Code Section 9287 shall control. Section 9285 of the Elections Code shall apply to the election and shall control the submission of any rebuttal arguments for this proposed Measure. Rebuttal arguments not to exceed two hundred and fifty (250) words must be submitted to the City Clerk no later than August 24, 2026, at 5:00 p.m.

9. **City Attorney's Impartial Analysis**. Pursuant to Elections Code Section 9280, the City Council hereby directs the City Clerk to transmit a copy of the proposed Measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the proposed Measure in accordance with the California Elections Code.

10. **Certification and Transmittal to the County**. The City Clerk shall certify the passage of this Resolution and shall file a certified copy of this Resolution with the Board of Supervisors and the Los Angeles County Registrar of Voters no later than August 7, 2026.

11. **Implementation**. The City Clerk and City Manager are authorized to take all actions necessary to effectuate the purposes of this Resolution and election. The City Clerk and City Attorney are authorized to make any typographical, clerical, and non-substantive corrections to this Resolution as may be deemed necessary by the Los Angeles County Registrar of Voters.

12. **General Application of Election Law**. In all particulars not recited in this Resolution, the election hereby called shall be as provided by state and local law for holding municipal elections in the City.

13. **California Environmental Quality Act**. The City Council hereby finds and determines that the proposed Measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines, Section 15378(b)(5) and or is exempt pursuant to State CEQA Guidelines, Section 15061(b)(3).

14. **Effective Date**. The Resolution shall become effective upon its adoption.

PASSED and ADOPTED this 21st day of July 2026.

Tamala Takahashi
Mayor

Approved as to Form:
Office of the City Attorney

Attest:

Kimberley Clark, City Clerk

By: Jill Vander Borght
Chief Assistant City Attorney

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF BURBANK)

I, Kimberley Clark, City Clerk of the City of Burbank, do hereby certify that the foregoing Resolution was duly and regularly passed and adopted by a vote of the Council of the City of Burbank at its regular meeting held on the 21st day of July, 2026, by the following vote:

AYES: Anthony, Perez, Rizzotti, Mullins, and Takahashi.

NOES: None.

ABSENT: None.

Kimberley Clark, City Clerk

EXHIBIT A

THE VOTERS OF THE CITY OF BURBANK HEREBY AMEND THE CHARTER OF THE CITY OF BURBANK AS FOLLOWS:

(Proposed amendments are reflected in ~~strike through text~~ [deletion] and underlined text [additions].)

ARTICLE 3.

Officers and Employees

Section 300. OFFICERS AND EMPLOYEES.

The officers of the City of Burbank shall be those provided for in this Charter. The Council may provide for such additional boards, commissions, committees, officers, and employees as may be deemed necessary and prescribe their respective powers and duties. The members of the Council shall be elected ~~from the City at large~~ by the qualified voters of the City and shall hold office for four (4) years or until their successors are elected and qualified. The manner of election of members of the Council shall be specified by duly adopted ordinance of the City of Burbank. All other officers, assistants, deputies, clerks, and employees shall be appointed as provided in this Charter, or as the Council may provide by ordinance in case no provision for their appointment is made. They shall hold their respective offices or positions at the pleasure of the appointing power, except as otherwise provided in this Charter. Where the power to appoint is vested in the Council, a three-fifths (3/5) vote of the Council Members shall be required to effect an appointment or removal.

Section 305. THE CITY COUNCIL

The legislative body of the City shall consist of five (5) persons ~~elected at large~~ which body shall be known as the Council. The members of the Council shall be elected by the qualified voters of the City in the manner provided by ordinance and for the term provided in this Charter. Members of the Council shall receive such compensation as may be prescribed by ordinance but not to exceed the amount which Council Members of general law cities of similar population would receive under State law, nor shall any Council Member be eligible to hold any other office or employment of the City except as may otherwise be provided in this Charter. In the event of resignation such member shall not be entitled to vote on the selection of their successor. Members of the Council shall not hold any other elective public office to which compensation is attached, and the acceptance of any such office or employment shall be deemed a resignation as Council Member.

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF BURBANK)

I, Kimberley Clark, Elections Official/City Clerk of the City of Burbank, County of Los Angeles, State of California, hereby certify that I have compared the foregoing copy with the original Resolution No. 26-29,726 A RESOLUTION OF THE COUNCIL OF THE CITY OF BURBANK CALLING FOR THE PLACEMENT OF A MEASURE ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT FOR THE SUBMISSION TO QUALIFIED VOTERS A PROPOSED ORDINANCE THAT WOULD CHANGE THE CITY'S ELECTORAL SYSTEM FROM AT-LARGE TO BY-DISTRICT ELECTIONS WITH RESPECT TO ELECTING CITY COUNCIL MEMBERS, ESTABLISHING DISTRICT BOUNDARIES BY ADOPTING MAP 130, AND SCHEDULING ELECTIONS WITHIN THE DISTRICTS; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SETTING RULES AND DEADLINES FOR ARGUMENTS AND REBUTTALS FOR AND AGAINST THE MEASURE, now on file in the Office of the City Clerk of the City of Burbank; that the same contains a full, true and correct transcript therefrom and of the whole thereof.

Witness my hand and the seal of said City of Burbank, this 6th day of August, 2026.

Kimberley Clark

KIMBERLEY CLARK
ELECTIONS OFFICIAL/BURBANK CITY CLERK

(SEAL)